

Check Before You Ship Software

While open source software is free and has several advantages, it does have compliance and licence requirements, as well as intellectual property rights. It is important that companies are aware of these.



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Compliance of open source software is often overlooked by companies. They do not ensure compliance before shipping their products or services or releasing updates. Ignoring baseline compliance requirements and procedures can lead to serious consequences for companies, especially during future revisions of the product (or other products/services that use code from the initial baseline).

Non-compliance not only exposes companies to the risk of litigation, they also stand to lose hefty amounts

as damages. Loss of reputation and rewriting of software are some of the other unavoidable repercussions. Further, companies may have to withhold the marketing, sale or distribution of products and services until the compliance requirements are met, the consequences of which can be more damaging than the monetary payouts.

Once the product or service is shipped, it becomes challenging to identify any non-compliance unless the company has a software bill of materials (SBOM). But even then,

there is no denying that extensive time and cost will be incurred in becoming compliant. Therefore, every company should focus on putting in place a process to ensure compliance before its products and services are shipped to stakeholders (internal or external).

Non-compliance may prove costly

Non-compliance has led to several disputes in the past. Settlement terms have often included taking necessary steps to become compliant or taking corrective measures. These can be costly in terms of the engineering efforts and